

1 _____ BILL NO. _____
2 INTRODUCED BY _____
3 (Primary Sponsor)
4 BY REQUEST OF THE LEGISLATIVE COUNCIL

5 A BILL FOR AN ACT ENTITLED: "AN ACT REVISING STATUTORY CONSTRUCTION BY PROVIDING A
6 PROCEDURE TO AMEND A TERMINATION DATE; AND PROVIDING AN IMMEDIATE EFFECTIVE DATE
7 AND A RETROACTIVE APPLICABILITY DATE."

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9 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

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11 **NEW SECTION. Section 1. Revision of termination date -- conflicting amendments -- no revival**
12 **of terminated amendment.** (1) The termination date of a statute may be revised by amending the session law
13 for the initial legislation that provided for the termination date. There is no limit on the number of times that a
14 termination date may be revised pursuant to this section.

15 (2) In the event of conflicting revisions to a termination date during the same legislative session,
16 the conflict may be resolved through a coordination instruction. If the conflict is not resolved through a
17 coordination instruction, the revised termination date that falls latest chronologically becomes law and all earlier
18 revised termination dates from the same legislative session are void.

19 (3) A termination date is not revised through an amendment of session law unless the legislation
20 revising the termination date is effective before the later of the initial termination date or the amended
21 termination date.

22 (4) As long as the session law of the initial legislation that provided for the termination date is
23 amended in the same enactment, this section does not invalidate the amendment of a termination date when
24 the session law that previously revised the termination date of the initial legislation is also amended.

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26 **NEW SECTION. Section 2. Codification instruction.** [Section 1] is intended to be codified as an
27 integral part of Title 1, chapter 2, part 2, and the provisions of Title 1, chapter 2, part 2, apply to [section 1].

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1 NEW SECTION. **Section 3. Effective date.** [This act] is effective on passage and approval.

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3 NEW SECTION. **Section 4. Retroactive applicability.** [This act] applies retroactively, within the
4 meaning of 1-2-109, to all legislation passed and approved on or after commencement of the 69th legislative
5 session.

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